



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

HB 2322: DCS; investigations; interviews; recording

GRESS FLOOR AMENDMENT

1. Requires DCS to apply for a grant if federal legislation is enacted that provides grants to states for the recording of child welfare interviews.
2. Requires DCS to apply for a grant until it is awarded and implement the audio and video requirements if a grant is received.
3. Makes a technical change.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2322
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-456, Arizona Revised Statutes, is amended to
3 read:

4 8-456. Investigative function; training; voice stress
5 analysis; recordings; criminal offenses; definitions

6 A. The department shall train all investigators in forensic
7 interviewing and processes and the protocols established pursuant to
8 section 8-817. The training must include:

9 1. An evidence-informed safety assessment model to assess the
10 safety of a child.

11 2. The duty to protect the legal and due process rights of children
12 and families from the time of the initial contact through case closure.

13 3. Instruction on a child's rights as a crime victim and
14 instruction on the legal rights of parents.

15 4. A checklist or other mechanism to assist the investigator in
16 giving consideration to the relevant factors in each investigation.

17 B. The office of child welfare investigations shall investigate DCS
18 reports that contain a criminal conduct allegation as provided in sections
19 8-471 and 8-817.

20 C. The department shall use an evidence-informed safety assessment
21 model to assess the safety of a child.

22 D. After receiving a DCS report from the centralized intake hotline
23 pursuant to section 8-455, an investigator shall do all of the following:

24 1. Make a prompt and thorough investigation. An investigation must
25 evaluate and determine the nature, extent and cause of any condition
26 created by the parents, guardian or custodian, an adult member of the
27 victim's household or an employee of a child welfare agency where the
28 child is placed that is licensed by and contracted with the department

1 that would tend to support or refute the allegation that the child is a
2 victim of abuse or neglect and determine the name, age and condition of
3 other children in the home. If an investigator has sufficient information
4 to determine that the child is not a victim of abuse or neglect, the
5 investigator may close the investigation.

6 2. If required by section 8-821 and subject to section 8-471, take
7 a child into temporary custody. Law enforcement officers shall cooperate
8 with the department to remove a child from the custody of the child's
9 parents, guardian or custodian when necessary.

10 E. The department may not use covert voice stress analysis during
11 an investigation to determine if abuse or neglect exists. The department
12 may not use overt voice stress analysis during an investigation unless the
13 person on whom the analysis is used gives informed consent. Results of
14 computer voice stress analysis are not admissible in court.

15 F. After an investigation, an investigator shall:

16 1. Determine whether any child is in need of child safety services
17 consistent with the evaluation and determination made pursuant to
18 subsection D of this section.

19 2. If appropriate pursuant to section 8-846, offer to the family of
20 any child who is found to be a child in need of child safety services
21 those services that are designed to correct unresolved problems that would
22 indicate a reason to adjudicate the child dependent.

23 3. Submit a written report of the investigator's investigation to:

24 (a) The department's case management information system within a
25 reasonable amount of time that does not exceed forty-five days after
26 receipt of the DCS report except as provided in section 8-811. If the
27 investigation involves allegations regarding a child who at the time of
28 the alleged incident was in the custody of a child welfare agency licensed
29 by the department under this title, a copy of the report and any
30 additional investigative or other related reports must be provided to the
31 board of directors of the agency or to the administrative head of the
32 agency unless the incident is alleged to have been committed by the
33 person. The department shall excise all information with regard to the
34 identity of the source of the reports.

35 (b) The appropriate court forty-eight hours before a dependency
36 hearing pursuant to a petition of dependency or within twenty-one days
37 after a petition of dependency is filed, whichever is earlier. On receipt
38 of the report the court shall make the report available to all parties and
39 counsel.

40 4. Accept a child into voluntary placement pursuant to section
41 8-806.

42 5. Identify, promptly obtain and abide by court orders that
43 restrict or deny custody, visitation or contact by a parent or other
44 person in the home with the child and notify appropriate personnel in the
45 department to preclude violations of a court order in the provision of any
46 services.

1 G. In conducting an investigation pursuant to this section, if the
2 investigator is made aware that an allegation of abuse or neglect may also
3 have been made in another state, the investigator shall contact the
4 appropriate agency in that state to attempt to determine the outcome of
5 any investigation of that allegation.

6 H. If an investigation indicates a reason to believe that a
7 criminal offense has been committed, the investigator shall immediately
8 provide the information to the appropriate law enforcement agency and the
9 office of child welfare investigations, unless the information was
10 previously provided pursuant to section 8-455.

11 I. THE DEPARTMENT SHALL RECORD BY ~~[AUDIOTAPE]~~ [AUDIO] OR
12 ~~[VIDEOTAPE]~~ [VIDEO] ANY INTERVIEW THAT THE DEPARTMENT CONDUCTS WITH A
13 CHILD PURSUANT TO THIS SECTION UNLESS EITHER OF THE FOLLOWING OCCURS:

14 1. THE RECORDING EQUIPMENT MALFUNCTIONS AND THE MALFUNCTION IS NOT
15 THE RESULT OF A FAILURE TO MAINTAIN THE EQUIPMENT OR PROVIDE ADEQUATE
16 SUPPLIES FOR THE EQUIPMENT.

17 2. DUE TO CIRCUMSTANCES THAT COULD NOT HAVE BEEN REASONABLY
18 FORESEEN BY THE DEPARTMENT, THE DEPARTMENT DOES NOT HAVE THE NECESSARY
19 RECORDING EQUIPMENT.

20 J. A PERSON WHO IS CHARGED WITH A CRIMINAL OFFENSE INVOLVING ABUSE
21 OR NEGLECT OF A CHILD DOES NOT HAVE STANDING TO OBJECT TO THE DEPARTMENT'S
22 FAILURE TO COMPLY WITH SUBSECTION I OF THIS SECTION. THE DEPARTMENT'S
23 FAILURE TO COMPLY WITH SUBSECTION I OF THIS SECTION IS NOT GROUNDS FOR
24 PRECLUDING STATEMENTS MADE BY A CHILD DURING AN INTERVIEW THAT ARE
25 OTHERWISE ADMISSIBLE IN A CRIMINAL OR DEPENDENCY PROCEEDING.

26 ~~K.~~ K. Except in judicial proceedings, a parent or legal guardian
27 may not be prohibited from recording conversations with the department
28 pursuant to this section.

29 ~~L.~~ L. Before implementing a new safety assessment model, the
30 department shall present the proposed change to the joint legislative
31 oversight committee on the department of child safety established by
32 section 41-1292 or to the committees with jurisdiction over the department
33 in the senate and house of representatives.

34 ~~M.~~ M. For the purposes of this section:

35 1. "Evidence-informed" means based on the best available child
36 welfare research and practice information.

37 2. "Investigator" means an employee of the department who
38 investigates allegations of abuse or neglect pursuant to a DCS report.

39 <<Sec. 2. Grant application requirement; delayed repeal

40 [A. If federal legislation is enacted that provides grants to
41 states for the recording of interviews conducted by the department of
42 child safety, the director of the department of child safety shall apply
43 for a grant. If a grant is received, the department shall implement the
44 audio and video recording requirements of section 8-456, subsection I,
45 Arizona Revised Statutes, as added by this act.

1 B. The director shall apply for a grant annually until a grant is
2 awarded.

3 C. This section is repealed from and after December 31, 2036.]]>>

4 Sec. 3. Conditional enactment; notice

5 A. This act does not become effective unless on or before December
6 31, 2036 federal legislation is enacted that provides grants to states
7 ~~[that require]~~ [for the] the recording of interviews conducted by the
8 department of child safety.

9 B. The director of the department of child safety shall notify the
10 director of the Arizona legislative council in writing on or before
11 December 31, 2036 either:

12 1. Of the date on which the condition was met.

13 2. That the condition was not met.

14 Enroll and engross to conform

15 Amend title to conform

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